25STCV33268 25STCV33268

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-08-04

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Case Number: 25STCV33268 Hearing Date: August 4, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: August 4,

2026 TRIAL DATE: Not Set

CASE: Eugenio A. Gonzalez v. Tierra Holding Co., LLC, et al.

CASE NO.: 25STCV33268

MOTION TO STRIKE PORTIONS OF COMPLAINT

MOVING PARTIES: Defendants Leyda Bequer and Bequer New Life LLC

RESPONDING PARTY: Plaintiff Eugenio Gonzalez

CASE HISTORY:

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11/12/25:

Complaint filed.

TENTATIVE RULING:

Defendants' motion to strike is DENIED.

Moving Party to give notice.

BACKGROUND

This case involves Plaintiff's claims that non-party Benjamin Bequer engaged in a fraudulent scheme to pillage nominal Defendant Tierra Holding Co. at the expense of the co-founder, Plaintiff.

Plaintiff alleges that Tierra is a holding company formed by Plaintiff and Benjamin to manage a series of ventures in the cannabis industry. Plaintiff claims that as a result of Benjamin Bequer's fraudulent accounting conduct, Tierra appears to be unprofitable and to have substantial losses when, in reality, Gonzalez would have been entitled to significant credit to his capital account and/or distributions if proper accounting had taken place.

Plaintiff alleges that over time, Benjamin Bequer assumed full operational control of Tierra, informing Gonzalez that his services were no longer needed. Benjamin Bequer then went about liquidating the assets of Tierra. While liquidating company assets, Benjamin Bequer and FEM, another company owned by Benjamin, engaged in a series of transactions in violation of their fiduciary duties, which were designed to divert substantial assets away from the company, thus blocking distributions to Plaintiff.

Plaintiff alleges that as an example, Tierra had acquired a property referred to as "Valley" using a hard-money loan, which was cross-collateralized against another property held free-and-clear by Tierra, known as "Muskrat." When the hard-money loan came due, Benjamin Bequer caused his mother, Defendant Leyda Bequer, to buy out the hard-money loan. He then caused Tierra to begin paying significant interest to Benjamin Bequer and/or Defendant Leyda Bequer on account of the loan at hard-money rates.

Plaintiff alleges that Tierra eventually sold the "Muskrat" property and used the proceeds to pay down the hard-money loan. Inexplicably, Plaintiff alleges, Benjamin Bequer and FEM did not obtain a payoff statement from Leyda Bequer, a reconveyance, or confirmation that the loan had been repaid. Nor did Benjamin Bequer or FEM cause the repayment of the loan to be properly accounted for on Tierra's books. As a result, Defendant Leyda Bequer continued to maintain a lien on the Valley property despite her loan being repaid in full, Tierra's books fail to reflect repayment of this loan, and Plaintiff has not been credited with any portion of the sale proceeds to his capital account.

Plaintiff
alleges that he recently discovered that Benjamin Bequer also caused Tierra to transfer the "Valley" property to Defendant Bequer New Life (BNL), an entity owned and controlled by Benjamin Bequer and Defendant Leyda Bequer. Plaintiff alleges this transaction took place without his knowledge and consent and without a fair and transparent sale process.

Defendants Leyda Bequer and Bequer New Life LLC move to strike portions of the complaint they argue is barred by the statute of limitations.

DISCUSSION:

Request
for Judicial Notice

Defendants seek judicial notice of certain deeds of trust and grant deeds, and Plaintiff's declaration in connection with a related case.

The request is granted, but the Court does not take judicial notice of the truth of the contents within the documents.

Plaintiff seeks judicial notice of the complaint in the related action entitled Eugenio Gonzalez v. Tierra Holding Co., LLC, et al., Case No. 24STCP02122; Stipulation for Binding Arbitration and Order Thereon in the Related Action; Demand for Arbitration in the arbitration entitled Eugenio Gonzalez v. Tierra Holding Co., LLC, et al., JAMS Ref. #5220008456; Gonzalez's Response to Notice of Objections to the Arbitrator's Jurisdiction in the Arbitration; Notice of Motion and Motion to Stay Arbitration and Lift Stay of this Action filed in the Related Action; First Amended Complaint in the Related Action; First Amended Complaint dated July 31, 2025 in the Related Action.

The request is granted, but the Court does not take judicial notice of the truth of the contents within the documents.

Motion to Strike

Defendants move to strike the allegations relating to the loan purchase and loan payoff on the ground that they are barred by the statute of limitations. Specifically, they argue that judicially noticeable documents (deeds of trust and grant deeds) establish that the Loan

Purchase took place on November 20, 2019, and that the Loan Payoff occurred on October 23, 2020. Defendants contend that he longest statute of limitations that could apply to any of the

Plaintiff's claims is four years. Thus, Defendants argue that as both transactions at issue in this motion occurred more than four years prior to the filing of the Complaint, the same must be stricken from the same is improper and irrelevant matter.

The complaint, on its face, must show it is barred by the statute of limitations. The running of the statute must appear “clearly and affirmatively” from the face of the complaint. It is not enough that the complaint might be time-barred. (See Committee for Green Foothills v. Santa Clara County Bd. of Supervisors (2010) 48 Cal.4th 32, 42; Union Carbide Corp. v. Superior Court (1984) 36 Cal.3d 15, 25-26.) Defendants request judicial notice in their effort to show that the complaint has claims that are allegedly barred by the statute of limitations. But the judicially noticeable documents are not part of the complaint. Nothing on the face of the complaint reveals it is barred by the statute of limitations, and Defendant does not argue it does. Further, Defendant has not responded to Plaintiff’s contention that the face of the complaint does not reveal it is barred by the statute of limitations. Therefore, Defendant’s motion to strike is DENIED.

CONCLUSION:

Accordingly, Defendants’ motion to strike is DENIED.

Moving Party to
give notice.

IT IS SO ORDERED.

Dated: August 4, 2026 ___________________________________

Rolf M. Treu

Judge of the Superior Court

Any party¿may submit on the tentative ruling by contacting the courtroom via email at ¿by no later than¿4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.